

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(Civil Appellate Jurisdiction)

Present:

Mr. Justice Kazi Md. Ejarul Haque Akondo
And
Mr. Justice Mohi Uddin Shamim

First Miscellaneous Appeal No. 140 of 2023
&
Civil Rule No. 671 (FM) of 2022

In the matter of:

1. Anwara Begum and others
... Plaintiffs-Appellants-Applicants

-Versus-

1. Md. Shah Alam
... Defendant-Principal Respondent-
Opposite Party
2. Nur Alam and others.
.... Defendants-Proforma Respondents-
Opposite Parties

Mr. Md. Al Haj Alal Uddin, Advocate with
Ms. Rabeya Sultana), Advocate
... For the Plaintiffs-Appellants-Applicants
Mr. Mahfuzur Rahman, Advocate with
Mr. Md. Anamul Huda Saker, Advocate
.... For the Defendant-Principal respondent-
Opposite Party

Heard on 4th March
&
Judgment on 6th March, 2025

Mohi Uddin Shamim, J.

Since the point of law and facts are involved in the appeal and the Rule are intertwined, they have been heard together and are being disposed of by this common judgment.

This First Miscellaneous Appeal, at the instance of the plaintiff-appellants, is directed against the order dated 18.04.2022 passed by the learned Joint District Judge, 2nd Court, Gazipur in Civil Suit No. 111 of 2021 rejecting the application for temporary injunction under Order XXXIX, Rule 1 of the Code of Civil Procedure, 1908 (hereinafter referred as 'The Code').

The facts as enunciated in the application for temporary injunction filed by the present appellant petitioner, in short, are that the present appellants as plaintiffs filed Civil Suit No. 111 of 2021 in the Court of learned Joint District Judge, 2nd Court, Gazipur for declaration of title along with partition seeking his saham in the scheduled land mentioned in the plaint.

During pendency of the suit, the plaintiffs-appellants as applicants filed an application for temporary injunction under Order XXXIX, rule 1 of 'The Code' in the Court of learned Joint District Judge, 2nd Court, Gazipur for an order for restraining the defendant No. 1 (respondent No. 1 in the present appeal) from doing any unauthorized construction work (without having plan) upon the said suit property till disposal of the Partition Suit No. 111 of 2021. In the application they also sought for ad-interim temporary injunction till disposal of the application.

Defendant No. 1 contested the application by filing a written objection denying the material averments made in the application for temporary injunction.

Upon hearing the submissions advanced by the learned Advocates for contending parties, perusing the application for injunction, the written objection filed by the defendant No. 1, the affidavit in reply to the counter affidavit and other materials available on records the learned Joint District Judge, 2nd Court, Gazipur, however on 18.04.2022, was pleased to reject the said application for injunction.

Challenging the said rejection order dated 18.04.2022, the plaintiffs as appellants preferred the instant first miscellaneous appeal being First Miscellaneous Appeal No. 140 of 2023 (F.M.A.T. No. 264 of 2022) before this Court. Soon after preferring this appeal, the appellants as applicants filed an application for temporary injunction stating the same averments so have been made in the application for temporary injunction filed before the Trial Court and after hearing the application this Court was pleased to issue rule and made a direction vide its order dated 06.11.2022, directing the parties to maintain status-quo in respect of position of the suit land for a period of 6 (Six) months which has lastly been extended till disposal of the rule on 02.05.2023.

Mr. Al Haj Md. Ala Uddin along with Ms. Rabeya Sultana, learned Advocates appearing for the appellants upon taking us to the memo of appeal, the impugned order, the application for temporary injunction and all other connected materials available on record at the very outset submits that, in spite of having a clear cause of action and cogent grounds for filing the application for temporary injunction, the learned Judge of the Trial Court came to a wrong findings that there is no substance for granting injunction and in this way erred both in law and facts in passing such impugned order of rejection of the application for temporary injunction and as such the same is liable to be set aside.

He next submits that, since the petitioners jointly remained in possession over 2 decimal of suit land by way of inheritance/succession as co-sharer with defendant appellant No. 1 and the others and they filed Partition Suit being No. 111 of 2021 against the defendant-respondents before the trial Court for their respective 'Saham', which reflects the prima facie case of the petitioners but, that very legal point has clearly been sidetracked by the learned judge while rejecting the injunction application of the plaintiffs and as such the impugned order is liable to be set-aside.

The learned Counsel further contends that learned Court below illegally rejected the prayer for temporary injunction of the plaintiff stating that there is no specification of the 2 decimal of suit land and thus there is

no prima facie case in favour of the plaintiffs but in 'schedule Kha' in clause (Mo) of the injunction application it is clearly mentioned with 'mats and bound' and as such the impugned order cannot be sustained in law and liable to be set aside.

The learned counsel finally submits that the plaintiffs appellant paid for temporary injunction in regards to preventing the defendant No.1 from constructing any 'pakka' structure over the suite land without having approved plan from the appropriate authority concerned by encroaching 3 feet land from the walk way of the plaintiffs and the people at large which might create difficulties for the pedestrians/ramblers, but this very legal point have also been evaded by the learned Judge below while rejecting the application for temporary injunction. Under such circumstances, it is quite unlawful, unreasonable and improper to hold that the plaintiffs have no prima facie case or the balance of convenience and inconvenience is not in favour of them. As such the impugned judgment is not tenable in law which has resulted in serious miscarriage of justice and the same is liable to be set aside. The learned counsel finally prays for allowing the appeal and make the rule absolute.

On the contrary, Mr. Mahfuzur Rahman, learned Advocate appearing on behalf of the respondent No. 1 takes us to the impugned order, the counter affidavit and other materials on record and vehemently

opposes the contention so have been taken by the learned advocate for the appellant submits that the appellant has no right, title and interest over the suit land. Earlier the lands in questions had been sold by the predecessors of the petitioner to the predecessors of the defendant No. 1 by registered deeds and handover possession to them. They are possessing the land by mutating their name in the records and paying Govt. taxes & rents and constructed multi storied building according to the plan approved by the concerned authority of Tongi Pourasova, Gazipur dated 14.01.2013. The learned judge of the Trial Court had rightly been rejected the application for temporary injunction filed by the petitioners vide an elaborate order dated 18.04.2022. He also submits that the appellants have no prima facie arguable case in their favour and the balance of convenience and inconvenience is always in favour of the defendant-respondent-opposite party No. 1 and unless the instant rule is discharged, this defendant-respondent no.1 shall suffer irreparable loss and injury, thus the learned advocate for the respondent No. 1 prays for dismissing the appeal and discharge the rule for the end of justice. In support of his submissions, the learned advocate refers to the case of *Fazlul Hoque Patwary (Md) and others vs Md. Rezaul Haque Patwary and others*, reported in 59 DLR (2007)115.

We have heard and carefully considered the submissions so advanced by the learned Advocates for the contending parties, perused the

memo of appeal, impugned order, the counter affidavit and other connected materials available on record at length.

In order to grant a temporary injunction under Order XXXIX Rule 1 of the Code of Civil Procedure, the Court must be satisfied that three essential elements exist, namely: (i) a prima facie case, (ii) balance of convenience and inconvenience in favour of the applicant, and (iii) the likelihood of irreparable loss or injury if the injunction is not granted.

In the present case, the appellants claimed to have filed a partition suit as co-sharers, asserting their inheritance-based title to a portion of the suit land. However, mere filing of a partition suit and a bald assertion of co-ownership do not, by themselves, establish a prima facie case unless supported by cogent documentary proof or clear possession over a specific, identified portion of the land. The record indicates that the plaintiffs have failed to demonstrate with clarity their existing possession over the disputed 2 decimals or any defined portion of the land. Though it was argued that 'schedule Kha' contained proper boundaries, the materials on record do not establish possession over a demarcated area sufficient to sustain an injunction.

Further, the balance of convenience does not appear to the favour of the appellants. The defendant No. 1, as per the documents and submissions, is in possession of the suit property, having allegedly

purchased the same through registered deeds from the predecessors of the plaintiffs, and is constructed a building pursuant to a plan approved by the competent authority as far back as 2013. Halting construction work based on an unsubstantiated claim of encroachment, without clearly delineated possession or prima facie ownership, would result in greater hardship to the defendant than to the plaintiffs.

Finally, as regards irreparable loss, the appellants have not demonstrated that any potential injury, if caused, cannot be adequately compensated by monetary damages. While the allegation of encroaching 3 feet from a walkway may have public implications, the remedy for such encroachment lies in appropriate legal recourse supported by clear evidence and not in a blanket injunction in the absence of prima facie ownership or possession.

It further appears that the learned Trial Court meticulously considered all three legal requirements for granting temporary injunction namely, the existence of a prima facie case, the balance of convenience and inconvenience, and the likelihood of irreparable injury. Upon a detailed examination of the pleadings and supporting materials from both sides, the Court below found no substantive evidence of exclusive possession by the plaintiffs over any specified portion of land, nor any urgency warranting

preventive relief. The allegation of encroachment, unsupported by verified boundaries or tangible proof of ownership or possession, was rightly not found sufficient to justify the injunction. The Court below found that construction was under way since a long time and hence an injunction at this stage would not be proper. The Trial Court's findings are based on a proper appreciation of both facts and law, and we see no illegality, perversity, or misdirection that would warrant interference sitting in appellate jurisdiction.

In such a situation and facts and circumstances of the case, we are of the view that the plaintiff-appellant No. 1 miserably failed to meet the criteria for obtaining a temporary injunction; thus, we do not find any earthly reason to interfere with the impugned order so far the rejection of application for temporary injunction is concerned.

Accordingly, **the appeal is dismissed** without any order as to costs.

Since the appeal is dismissed, the connected rule being **Civil Rule No. 671 (FM) of 2022 is hereby discharged.**

The order of 'Status quo' granted earlier by this Court is hereby recalled and vacated.

Communicate a copy of the judgment and order to the Court of
learned Joint District Judge, 2nd Court, Gazipur forthwith.

Kazi Md. Ejarul Haque Akondo, J.

I agree.

Syed Akramuzzaman, B.O